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STEVENS, J., dissenting

a discussion of petitioner's claim of entitlement to *Harlow* immunity.

II

Accepting for the moment the Court's double standard of reasonableness, I would affirm the judgment of the Court of Appeals because it correctly concluded that petitioner has not satisfied the *Harlow* standard for immunity. The inquiry upon which the immunity determination hinges in this case illustrates an important limitation on the reach of the Court's opinion in *Harlow*. The defendants' claims to immunity at the summary judgment stage in *Harlow* and in *Mitchell v. Forsyth*, 472 U. S. 511 (1985), were bolstered by two policy concerns that are attenuated in suits against law enforcement agents in the field based on the Fourth Amendment. One was the substantial public interest in allowing government officials to devote their time and energy to the press of public business without the burden and distractions that invariably accompany the defense of a lawsuit. *Harlow*, 457 U. S., at 816-817; *Mitchell*, 472 U. S., at 524. The second underpinning of *Harlow* was the special unfairness associated with charging government officials with knowledge of a rule of law that had not yet been clearly recognized. *Harlow*, 457 U. S., at 818; *Mitchell*, 472 U. S., at 535.² Thus, if the

²This theme also pervades our pre-*Harlow* opinions construing the scope of official immunity in suits brought under 42 U. S. C. § 1983. Those precedents provide guidance for causes of action based directly on the Constitution, for "it would be 'untenable to draw a distinction for purposes of immunity law between suits brought against state officials under § 1983 and suits brought directly under the Constitution against federal officials.'" *Harlow v. Fitzgerald*, 457 U. S., at 818, n. 30 (quoting *Butz v. Economou*, 438 U. S. 478, 504 (1978)). Accord, *Malley v. Briggs*, 475 U. S. 335, 340, n. 2 (1986). While it is unfair to expect officials to anticipate changes in the law with a prescience that escapes even the most able scholars, lawyers, and judges, our precedents recognize that qualified immunity is entirely consistent with the requirement that federal officials act in a way that is consistent with an awareness of the fundamental constitutional rights enumerated in the Bill of Rights of the Constitution. In